



CHAPTER 12

An Act to amend the law relating to the superannuation benefits payable in respect of service with trustee savings banks and their inspection committee.

[29th March, 1955]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) The Treasury may, after consulting the National Debt Commissioners, by order extend or modify the superannuation benefits payable under sections sixty-four to sixty-nine of the Trustee Savings Banks Act, 1954 (which authorise trustee savings banks and the Inspection Committee to pay pensions and similar benefits). Power to make orders as to superannuation benefits.
2 & 3 Eliz. 2.
c. 63.

(2) The Treasury may, in particular, by an order under this section authorise the payment of superannuation benefits corresponding to those payable under the Superannuation Acts, 1834 to 1950, or under any other enactment, whether past or future, which relates to the superannuation benefits payable in respect of the service of civil servants, but shall not make an order which in their opinion would authorise the payment of superannuation benefits superior to those payable in respect of the service of civil servants.

(3) Subject to the restrictions imposed by the last foregoing subsection, an order under this section may in particular—

- (a) authorise the granting of pensions for widows, children and other dependants of deceased employees, and of lump sums payable on retirement, or on death before retirement, and

7 & 8 Geo. 6.
c. 21.

- (b) authorise the increase of pensions in cases corresponding to those where civil service pensions have been increased by the Pensions (Increase) Act, 1944, or any subsequent Act relating to the increase of current pensions, and
- (c) make provision as to the kinds of service which may be treated as pensionable service, and as to payments in respect of employees transferred from one service to another, and
- (d) amend any of the provisions of the said sections sixty-four to sixty-nine of the Trustee Savings Banks Act, 1954, and
- (e) make provision for transitional, supplemental or incidental matters,

12, 13 & 14
Geo. 6. c. 44.

15 & 16 Geo. 6.
c. 10.

and an order making provision corresponding to Part I or II of the Superannuation Act, 1949 (which provides for the payment of contributions in return for the benefits thereby conferred), may apply section three hundred and eighty-four of the Income Tax Act, 1952 (which provides that relief from income tax shall not be allowed in respect of such contributions).

(4) An order under this section may be varied or revoked by a subsequent order and the power of making such orders shall be exercisable by statutory instrument which shall be subject to annulment in pursuance of a resolution of either House of Parliament.

(5) In this section "civil servant" has the meaning assigned to it by subsection (2) of section sixty-three of the Superannuation Act, 1949.

Short title
and extent.

2.—(1) This Act may be cited as the Trustee Savings Banks (Pensions) Act, 1955.

(2) This Act shall extend to Northern Ireland, the Isle of Man and the Channel Islands.

PRINTED BY JOHN ROUGHTON SIMPSON, C.B.

Controller of Her Majesty's Stationery Office and Queen's Printer of Acts of Parliament

LONDON : PUBLISHED BY HER MAJESTY'S STATIONERY OFFICE

Price 2*d.* net

PRINTED IN GREAT BRITAIN

(38069)